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विश्वविद्यालय अनुदान आयोग

विश्वविद्यालय अनुदान आयोग (मूल्यांकन और प्रत्यायन एजेन्सियों को
मान्यता प्रदान करना और उनकी निगरानी संबंधी) विनियम, 2018

अधिसूचना

नई दिल्ली, 14 अगस्त, 2018

फा. सं. 1-19/2017 (सीपीपी-II).—

प्रस्तावना

जबकि, विश्वविद्यालय अनुदान आयोग (वि.अ.आ.), विश्वविद्यालयों में उच्चतर शिक्षा के मानदण्डों का समन्वय करने तथा निर्धारण करने हेतु अधिदेशित है;

जबकि, पारदर्शी तथा जानकारीप्रद बाह्य समीक्षा प्रक्रिया द्वारा मूल्यांकन एवं प्रत्यायन, गुणवत्ता निर्धारण करने तथा आश्वासन हेतु प्रभावी तरीके हैं;

जबकि, अनिवार्य मूल्यांकन तथा प्रत्यायन से देश में उच्चतर शिक्षा प्रणाली, वैश्विक गुणवत्ता आश्वासन प्रणाली का अंग बनने में सक्षम होगी;

जबकि, प्रत्यायन की मौजूदा क्षमता को उच्चतर शिक्षा संस्थानों की आवश्यकताओं को पूरा करने के लिए अपर्याप्त पाया गया है जिसके परिणामस्वरूप इस क्षेत्र में अधिक प्रत्यायन एजेन्सियों के माध्यम से क्षमता विस्तार करने की आवश्यकता महसूस की गई है;

इसलिए, विश्वविद्यालय अनुदान आयोग अधिनियम, 1956 की धारा 26 की उपधारा (1) की खंड (छ) के साथ पठित धारा 12 की खंड (ज) द्वारा प्रदत्त शक्तियों का प्रयोग करते हुए तथा विश्वविद्यालय अनुदान आयोग के दिनांक 17 जुलाई, 2014 को पूर्व में जारी की गई राजपत्रित अधिसूचना का अधिक्रमण करते हुए विश्वविद्यालय अनुदान आयोग निम्नवत् विनियमों को तैयार करता है:—

UNIVERSITY GRANTS COMMISSION

UNIVERSITY GRANTS COMMISSION (RECOGNITION AND MONITORING OF
ASSESSMENT AND ACCREDITATION AGENCIES) REGULATIONS– 2018

NOTIFICATION

New Delhi, the 14th August, 2018

F. No. 1-19/2017 (CPP-II).—

Preamble

Whereas University Grants Commission (UGC) is mandated to coordinate and determine the standards of higher education in universities;

Whereas assessment and accreditation through transparent and informed external review process are the effective means of quality determination and assurance;

Whereas mandatory assessment and accreditation would also enable the higher education system in the country to become a part of the global quality assurance system;

Whereas the existing capacity for accreditation is found to be inadequate to meet the requirements of the higher educational institutions, calling for augmentation of the capacity by allowing more accreditation agencies to come into this sphere of activity;

Therefore, in exercise of the powers conferred by clause (j) of Section 12 read with clause (g) of sub-section (1) of Section 26 of the University Grants Commission Act, 1956 and in supersession of the earlier notification Gazetted on 17th July, 2014 the University Grants Commission hereby makes the following regulations:-

1. Short title, application and commencement –

- (1) These regulations shall be called the University Grants Commission (Recognition and Monitoring of Assessment & Accreditation Agencies) Regulations, 2018.
- (2) These regulations shall apply to all Assessment and Accreditation Agencies (AAA) engaged in the assessment and accreditation of higher educational institutions (HEIs) and/or programmes conducted therein, other than the higher educational institutions engaged mainly in agricultural education and research, in the country.
- (3) These regulations shall come into force from the date of their notification in the Official Gazette.

2. Definitions -

In these regulations, unless the context otherwise requires—

(a) “Academic quality” means the quality of teaching, learning and research and consequently their contribution to enhancement of knowledge and includes physical infrastructure, human resources (including faculty), administration, course curricula, admission and assessment procedures and governance structures, of the higher educational institution and includes standards as laid down by the appropriate statutory regulatory authority;

(b) “Accreditation” means the process of quality assurance in Higher Education Institutions, whereby, as a result of evaluation or assessment or by any other scientific

method followed by accreditation agencies, an HEI or programme(s) conducted therein is recognised as conforming to benchmarked parameters of academic quality;

(c) “Accreditation Advisory Council” means the Council appointed by the UGC under clause 4.1 of these regulations;

(d) “Articles of Association” means articles of association of a company as defined in Section 2(5) of the Companies Act, 2013

(e) “Assessment” means the process involved in ascertaining or verifying the capabilities of an HEI in terms of the academic outcomes, physical infrastructure, human resources (including faculty), administration, course curricula, admission and student evaluation procedures and governance structure prior to the commencement of its academic programmes through objective parameters;

(f) “Assessment and Accreditation Agency” means an agency registered under clause 5 of these regulations and includes the National Assessment and Accreditation Council (NAAC) and National Board of Accreditation (NBA);

(g) “Certificate of registration” means the certificate of registration of an assessment and accreditation agency granted under Clause 5 of these Regulations;

(h) “Code of ethics” includes integrity, objectivity, professional competence, professional conduct, avoidance of conflict of interest, transparency and information disclosure and such other ethical principles as may be specified in these regulations;

(i) “Commission” means the University Grants Commission as defined in the University Grants Commission Act 1956;

(j) “Distance education systems” means the open and distance education systems as specified by the Commission in the regulations for Open and Distance Education;

(k) “Government agency” shall mean any entity or institution which is owned and funded by Central or State Government.

(l) “Higher Educational Institution” means an institution of learning including a University, an Institution Deemed to be University, a College, an institution of national importance declared as such by an Act of Parliament, or a constituent unit of such institution, which is imparting (whether through conduct of regular classes or distance education systems) higher education beyond twelve years of schooling leading to the award of a degree or diploma;

(m) “Instrument of Trust” means, in case of a Trust, such instrument as defined under section 3 of the Indian Trusts Act, 1882;

(n) “Memorandum of Association” means, in case of a company, such memorandum as defined under sub-section (28) of section 2 of the Companies Act, 2013, or in case of a society, such memorandum as specified under section 2 of the Societies Registration Act, 1860;

(o) “Programme” means programme of a study leading to the award of a diploma or a degree at graduate and post-graduate level in a Higher Educational Institution;

(p) “Semi Government agency” shall mean an entity or institution, formed by a

Government agency with majority stake in a partnership with a private entity which has at least five years of experience in accreditation process, with the exclusive purpose of meeting the objectives of these Regulations;

(q) “Technical Education Programmes” means programmes of education, research and training in the areas namely engineering and technology, architecture, town planning, management, pharmacy, applied arts and crafts, hotel management and catering technology, computer applications, and such other programmes or areas as the Central Government may, in consultation with the Commission, by notification in the official gazette, declare.

(r) “University” means a university established or incorporated by or under a Central Act, a Provincial Act or a State Act, and includes an Institution Deemed to be University;

Words and expressions used and not defined in these regulations but defined in the University Grants Commission Act, 1956 and not inconsistent with these regulations shall have the meanings respectively assigned to them in that Act.

3. Objectives

3.1 To lay down a framework for mandatory assessment and accreditation of Higher Educational Institutions and/or programmes including Technical Education Programmes conducted therein, allowing setting up of Assessment and Accrediting Agencies (AAAs) by Government or Semi-Government agencies, apart from the existing accreditation institutions namely National Assessment and Accreditation Council (NAAC) and the National Board of Accreditation (NBA).

3.2. To lay down procedures and criteria for registration of AAAs .

3.3 To regulate AAAs through an independent but accountable institutional mechanism.

4. Setting up of an Accreditation Advisory Council by Commission for Recognition of AAAs

4.1. To advise the Commission on functions referred at 4.3 below, the Commission shall appoint an Accreditation Advisory Council (AAC) comprising up to 10 members who shall be distinguished academicians, experts in the field of higher education, assessment and accreditation. Initially, Members of the AAC shall be identified and recommended by a Committee appointed by the Ministry of Human Resource Development through a well defined credible transparent and merit based process.

4.2 The AAC shall follow a transparent and merit-based process of selection of AAAs and make recommendation to the Commission for registration. The Commission shall thereupon notify the AAAs.

4.3 Commission in consultation with the AAC shall, subject to the provisions of these regulations and of those made under any law for the time being in force by the appropriate statutory regulatory authority, take measures to develop and regulate the process of assessment and accreditation of Higher Educational Institutions (HEIs) and programme(s) conducted therein., and to monitor the functioning of AAAs.

4.4 Without prejudice to the generality of the foregoing provisions, the measures referred to in sub-clause(1) of clause (3), may, inter alia, provide for all or any of the following matters, namely:—

(a) regulate AAAs (registration of the assessment and accreditation agencies);

(b) lay down norms and processes for assessment and accreditation of academic quality in HEI(s) or of programme(s) including Technical Education Programmes conducted therein, by AAAs;

(c) undertake periodical review of norms and policies referred to in sub-clause mentioned above at (b);

(d) lay down a code of ethics;

(e) undertake audit of AAAs, disclosure of information and evolving of transparency in the processes of assessment and accreditation;

(f) lay down policies for providing information to the public in regard to all aspects of quality and performance of HEI(s) and programme(s) conducted therein;

(g) determine levying of fees or other charges for carrying out assessment and accreditation under these Regulations;

(h) advise the Central Government or any State Government or the appropriate statutory regulatory authority on any policy matter concerning assessment and accreditation which may be referred to it;

(i) monitor adherence to such norms, guidelines and standards of academic quality, as may be specified under any law for the time being in force by the appropriate statutory regulatory authority in HEIs;

(j) perform such other functions as may be prescribed by Commission.

5. Registration of Assessment and Accreditation Agencies

5.1. No AAA shall, except under and in accordance with the conditions of a certificate of registration obtained from the Commission and in accordance with rules and regulations made by it, undertake assessment and accreditation of any HEI(s) or any programme(s) conducted therein:

5.2 (1) Every application for registration as an AAA by a Government or Semi-Government entity shall be made to the Commission in such form and manner as specified in sub-clause (2) below and accompanied by such other documents and on payment of such fees as may be further specified by the Commission through a public notification.

Provided further, that agencies set up by or under any law for the time being in force such as NAAC, NBA shall stand recognized for the purposes of these Regulations.

(2) Every application under sub-clause(1) shall be submitted by a Government or Semi-Government agency in a form specified by the Commission through a public notification and shall be accompanied by the following, namely:—

(a) duly certified copy of memorandum of association/articles of association or the instrument of trust if the applicant is a registered Society/Company or a Trust respectively, in which the main function shall be to conduct assessment and accreditation of academic institutions;

(b) details of members of the authorities of the Society/Company/Trust;

(c) details of infrastructure and employees of the applicant;

(d) details of demonstrable capabilities and experience in higher education consulting and quality enhancement and experience in authentication or assessment in higher education undertaken/ expertise available with it;

(e) a detailed mechanism for detecting any potential conflict of interest between the applicant or its employees or experts and an HEI;

(f) a credible mechanism for transparency in respect of the financial status and financial dealings of the applicant;

(g) a reliable public information disclosure policy for assessment and accreditation of any Higher Educational Institution or any programme(s) conducted therein;

(h) complete processes and procedures to be followed by the applicant in the assessment and accreditation of any Higher Educational Institution or any programme conducted therein;

(i) option by the AAA to get empanelled as an accrediting agency to carry out Institutional level and / or programme level accreditation.

(j) such other documents as may be specified by a public notification by the Commission.

5.3 No application for grant of a certificate of registration shall be considered by the Commission unless the applicant satisfies the following conditions, namely:—

➤ the applicant shall be-

(i) A Government or Semi-Government agency and

(ii) Registered as a Company u/s 8 of the Companies Act, 2013 or a society formed and registered under the Societies Registration Act, 1860 or a Trust formed under the Indian Trusts Act 1882 or any other law for the time being in force.

5.4 (1) The Commission shall issue a public notice calling for applications, within the time period as specified therein, from eligible Government or Semi-Government agencies for registration as AAAs

(2) All the eligible applications received within the stipulated period shall be sent by the Commission to the AAC for assessment and advice.

(3) The AAC shall, within thirty days after receipt of applications, shall conduct a detailed evaluation of the suitability and competency of each of the applicants and send advice to the Commission.

5.5 (1) The Commission shall, within a period of thirty days from the receipt of recommendation by AAC shall, —

(a) issue a certificate of registration as an AAA, on such terms and conditions as may be specified in such certificate, subject to the provisions of these Regulations; or

(b) reject the application for reasons to be recorded in writing;

Provided that no application shall be rejected unless the applicant has been given a reasonable opportunity of being heard.

(2) The Commission shall, while issuing a certificate of registration, also approve the procedures and conditions for assessment and accreditation specified by the AAA as such or with modifications as it may deem fit.

(3) The procedures and conditions approved under sub-clause (2) shall be considered as an integral part of the certificate of registration which shall not be modified or altered without the approval of the Commission.

(4) The Commission may, if it so deems fit, in the certificate of registration granted to an AAA, limit the area to a regional level and/or to specific discipline of the programmes for which such assessment and accreditation agency may exercise its duties and responsibilities of assessment and accreditation.

(5) A certificate of registration shall be valid for a period of two years unless such certificate is revoked earlier. Subsequent recognition renewal will be every three years.

5.6 (1) A certificate of registration granted may, on an application made by the AAA, be renewed by the Commission, after obtaining advice of AAC regarding the performance of such AAA, and on payment of such fees as may be specified by Commission.

(2) No application for renewal of the certificate of registration made under sub-clause(1) shall be rejected unless the applicant has been given a reasonable opportunity of being heard in the matter.

5.7 No AAA shall, without the prior approval of the Commission, effect any change in its ownership, or governing body or board of trustees, or the memorandum of association or articles of association or the instrument of trust.

5.8 The Commission may, in the public interest or for ensuring advancement of academic quality, on an application of the AAA or otherwise, make such alterations and amendments in the terms and conditions of the certificate of registration as it thinks fit, in accordance with such procedure as may be specified by it through a public notification.

5.9 (1) If the Commission, on a complaint or otherwise, and after making such enquiry as it deems fit, is satisfied that public interest so requires, it may revoke the certificate of registration in any of the following cases, namely:—

(a) where the AAA, in the opinion of the Commission, makes willful or continuous default in any act of commission or omission as required by these regulations;

(b) where the AAA commits breach of any of the terms or conditions of the certificate of registration which is expressly declared by such certificate of registration to render it liable for revocation;

(c) where the AAA fails, within the period fixed in this behalf by its certificate of registration, or any longer period which the Commission may have granted thereof, to show, to the satisfaction of the Commission, that it is in a position to discharge the duties and obligations fully and efficiently imposed on it by its certificate of registration;

(d) where in the opinion of the Commission the financial position of the AAA is such that it is unable fully and efficiently to discharge the duties and obligations imposed on it by its certificate of registration;

(e) the AAA has ceased to exist.

(2) No certificate of registration shall be revoked under sub-clause(1) unless the Commission has given to the AAA not less than thirty days notice, in writing, stating the grounds on which it

is proposed to revoke the certificate of registration, and has considered any cause shown by the AAA within the period of that notice, against the proposed revocation.

(3) Where in its opinion the public interest so requires or for ensuring the advancement of academic quality, the Commission may, on conclusion of the enquiry under sub-clause(1), suspend the certificate of registration granted to the AAA till such time as a decision on the revocation of such certificate of registration or otherwise is taken by the Commission.

(4) Where the Commission revokes a certificate of registration under this clause, it shall serve an order of revocation upon the AAA and fix a date on which the revocation shall take effect; and such revocation shall be without prejudice to the action which may be taken against it in under any other law for the time being in force.

(5) The Commission may, instead of revoking a certificate of registration under sub-section (1), permit it to remain in force subject to such further terms and conditions as it thinks fit to impose, and any further terms or conditions so imposed shall be binding upon and be observed by the AAA and shall be of like force and effect as if they were contained in the certificate of registration.

(6) The Commission shall publish on its website any action initiated under this clause and the final decision on the revocation of the certificate of registration or otherwise together with all documents and reasons for such decision.

(7) Where the certification of any AAA has been revoked under sub-clause(4) on grounds referred to in sub-clause (1), the Commission shall, within a period of sixty days from the date of such revocation, conduct an audit of all the Higher Educational Institution accredited by such agency within a period of one year before the date of such revocation.

(8) The Commission shall, while suspending or revoking a certificate of registration, take, or cause to be taken, such measures which may be necessary to protect the interests of students.

6. Duties and Obligations of Assessment & Accreditation Agencies

6.1 (1) While undertaking assessment and accreditation of an HEI or programme(s) conducted therein, the AAA shall have regard to following principles in discharging its obligations for the advancement of knowledge, namely:—

(a) advancement of academic quality;

(b) enabling uniform reference of standards of academic quality in any class or classes of higher educational institutions or any programme(s) including Technical Education Programmes conducted therein;

(c) informing stakeholders (including students and employers) about the quality of the Higher Educational Institution or any programme(s) conducted therein;

(d) rendering assistance to Higher Educational Institutions in managing and enhancing their academic quality and work towards the development of explicit intended learning outcomes;

(e) adherence to such other principles for advancement of knowledge which may evolve from time to time.

(2) The AAA shall, while undertaking assessment or accreditation of Higher Educational

Institutions or any programme(s) including Technical Education Programmes conducted therein, base their assessment on verifiable and objective criteria and follow the standards in respect of academic quality specified by the Commission.

(3) Every AAA shall abide by the code of ethics as laid down by the Commission.

6.2 (1) Every AAA shall assess or accredit Higher Educational Institution or programme(s) including Technical Education Programmes conducted therein on an application made to it by such institution in such form and manner, and on payment of such fees as may be specified by the Commission through a public notification, and within ninety days from the date of such application.

(2) The assessment or accreditation of Higher Educational Institution or a programme(s) conducted therein shall be done, based on data on performance parameters which are to be publicly disclosed, at such intervals and after such periods as are specified in the UGC (Mandatory Assessment and Accreditation) Regulations, 2012.

(3) The AAA shall, while undertaking assessment or accreditation of a Higher Educational Institution or programme(s) in such institution, provide an opportunity to the stakeholders in the higher educational institution, including students and employees, to submit their views on matters of academic quality.

(4) The AAA shall give a reasonable opportunity to the Higher Educational Institution to file suggestions or objections, if any, on the draft assessment or accreditation prepared by it and shall take note of such suggestions or objections, if any, while finalizing the assessment or accreditation of such institution or any programme(s) conducted therein.

(5) The AAA shall publish on its website the assessment or accreditation undertaken together with all documents and reasons for such assessment or accreditation.

(6) The AAA shall furnish to the Commission at such time and in such form and manner as may be specified by the Commission in a public notification or as the Commission may direct, such returns and statements and such particulars in regard to assessment or accreditation of higher educational institutions by such agency, as the Commission may, from time to time, require.

(7) Without prejudice to the provisions of sub-clause (1), the AAA shall, within a period of ninety days after the end of each financial year, submit to the Commission a report along with audited statement of accounts in such form, as may be specified by the Commission in a public notification, giving a true and full account of its activities, policy and programmes in regard to accreditation of higher educational institutions by such agency during the previous financial year.

7. The accounts of AAA would be subject to C&AG audit.

8. Funding

8.1 The Accreditation Advisory Council (AAC) shall examine the quantum of fees to be levied by the Assessment and Accreditation Agencies and recommend to the Commission for approval.

8.2 The Commission shall create a mechanism wherein every Higher Educational Institution would be charged a fee that would be collected in a Central Pool to create a fund; to avoid a direct link between a Higher Educational Institution and an accreditation agency.

8.3 The Commission, shall thereafter, authorize the remission of such fees payable from the Central Corpus to the respective AAAs

9. Allocation of an accrediting agency for accreditation

(1) The Higher Educational Institution shall give three choices of the AAA at the time of submission of application.

(2) The AAC shall have the final decision to allocate an AAA for a Higher Educational Institution considering all the relevant factors and the decision of AAC will be binding on the Higher Educational Institution and the AAA concerned.

10. Grievance Redressal Mechanism

10.1 Any person aggrieved by the assessment or accreditation decided by any AAA under these Regulations, may submit grievance to the Commission for withdrawal of such assessment or accreditation or its modification.

10.2 The Commission shall take a decision on grievance received within ninety days after affording the AAA reasonable opportunity of being heard and after due consultation with the AAC.

11. Penalties

11.1 If an AAA resorts to corrupt or unlawful practices, or is found to have given accreditation without due process, or has given rating based on extraneous considerations, such AAA can be debarred from further accreditation work by the AAC, apart from withdrawal of registration.

Provided that such an order shall be passed only after serving a notice on the AAA concerned, and after giving an opportunity for the AAA to explain the charges leveled in the notice.

11.2. If an AAA fails to comply with the obligations referred to in sub-clause 6.1 (1) and the adherence to the code of ethics referred to in sub-clause 6.1(3), without prejudice to any penalty which may be imposed under the University Grants Commission Act, 1956, it shall be liable to pay such compensation, to the HEI for any loss or damages suffered by such institution, as may be determined by a Court of Law.

11.3 The Commission shall publish the name and address of the erring AAA in the Public Domain.

11.4 Any AAA, which contravenes-

- (a) any provision of these regulations or any notification made thereunder; or
- (b) the standards specified under any law for the time being in force by the appropriate statutory regulatory authority; or
- (c) the terms and conditions specified in the certificate of registration shall, without prejudice to proceeding for prosecution under the provisions of these regulations or any other law for the time being in force, be liable to a penalty as per the provisions of the University Grants Commission Act, 1956.

11.3 If any person provides any information or produces any document under these regulations or under any notification made thereunder, or delivers an account or statement which is false, and which he either knows or believes to be false, or does not believe to be true, he shall be liable for being prosecuted in a Court of Law by the University Grants Commission.

11.4 If any HEI furnishes false or misleading information or tries to influence the AAA in whatever way to obtain a higher grade or assessment, it shall be liable to be de-notified from the Section 2(f) and 12B of UGC Act, 1956 and stoppage of/or withdrawal of UGC grants, if any. Similarly a Deemed to be University shall be liable for de-notification of its status as a Deemed to be University under Section 3 of the University Grants Commission Act, 1956.

12. Removal of difficulties

If any difficulty arises in giving effect to the provisions of these regulations, the Commission may, by order published in the Official Gazette, make such provisions not inconsistent with the provisions of these regulations as appear to it to be necessary or expedient for removal of the difficulties;

Provided that, no such order shall be made after the expiry of a period of two years from the date of the commencement of these regulations;

Provided further that, an order providing for the removal of a difficulty arising due to overlap or conflict with regulations of any other appropriate statutory authority shall be passed only in consultation with and, with the concurrence of such statutory authority.

Prof. RAJNISH JAIN, Secy.

[ADVT.-III/4/Exty./191/18]